PATENT INFORMATION DOCUMENT

ATHENAL LEGAL

STEPS FOLLOWED BY ATHENA LEGAL TO DRAFT AND FILE AN APPLICATION

STEP 1	STEP 2	STEP 3	STEP 4	STEP 5	STEP 6
Filling Invention Disclosure (IDF) Form by the inventor	Call to discuss the invention with Team Athena to decide filing of PS or CS	Drafting of the invention by Team Athena	Confirmation of the draft and confirmation of the inventor details by the Inventors	Filing of the Application and Communication of Application Number with Ack and Form 1 for Signature	Providing Signed Form 1 within 3 months and providing evidence within 12 months in case of PS

PS - Provisional Specification
CS - Complete Specification

*Details mentioned here are for illustration purpose only

TESTS FOR SELECTING A PATENT APPLICATION

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1

Whether the idea has been tested for feasibility ?

- No, need some time for R&D
  - File provisional and get 12 months time
    - File complete specification
- Yes, have clarity over the product that goes into market
  - File complete specification

2

Complete specification already filed

- Observed just an improvement
  - File patent of addition
- Observed significant change
  - Convert into provisional application and later follow-up with a complete specification
- Observed a different point of novelty
  - File divisional application

3

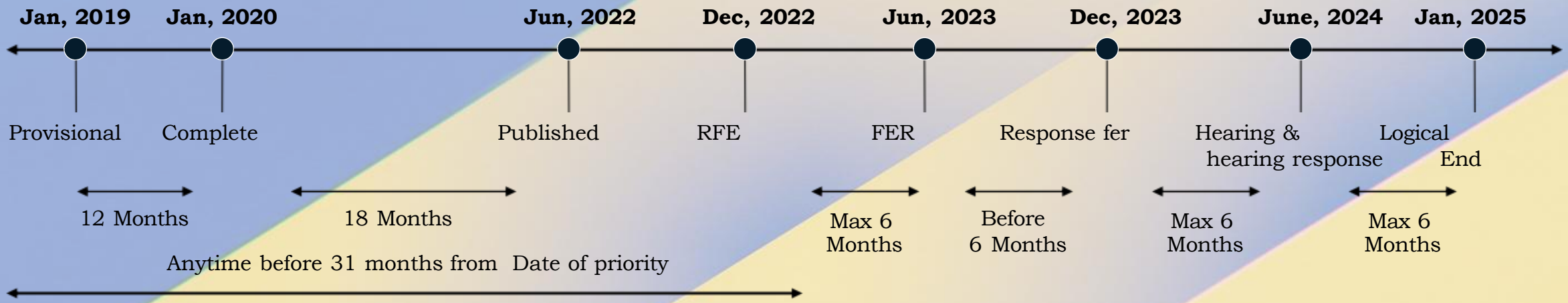
Product is not finalised but multiple inventive steps are observed

- File provisional specification to secure priority to each of such steps
  - Follow-up with a complete specification before 12 months from data of filing first provisional specification

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PATENT CYCLE - EXEMPLARY SCENARIO:

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Note:

1. Date of priority is date of filing provisional application. In case complete specification is directly filed, date of priority is date of filing of the complete specification.
2. RFE: Request For Examination has to paid before 31 months from date of priority.
3. FER: First Exanimation Report shall be issued anytime before 6 months if REF is already filed.
4. Early publication request gets the application published as soon as possible.
5. Expedited examination is available only for Start-ups, SMEs, female applicants, Govt depts. and those who made India as search authority in foreign filings. In case of Expedited Examination, it takes about half the time as normal proceedings.
6. Logical End may include Grant/Refusal. In case of refusal, filing review petition.
7. RFE, Early publication, Expiated examination have stipulated govt. fees as discussed in the Schedule of Fees

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SOME Keywords

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APPLICANT	INVENTOR
Applicant may be a Legal person or a natural person	Inventor should always be a natural person
PROVISIONAL SPECIFICATION	**COMPLETE SPECIFICATION**
Provisional specification is filed with limited information to secure the concept and priority date before any possible public disclosure	Complete specification is filed with best possible information and evidence of validation to secure grant
First Examination Report (FER)	**HEARING**
It is a first communication from patent office, and includes certain objections observed by the patent office and to be complied with in 6 months in writing	It is an opportunity to defend the application via placing oral arguments, and it shall be the final stage

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SOME FAQs

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Sl. No	QN	ANS
1	What would happen if complete specification is not filed after provisional specification?	The Application would be abandoned; the priority would be lost. However, it shall not affect novelty so it can be refiled.
2	Can time to file complete specification be extended ?	Yes, it can be extended upto 6 month with fees and with lose of priority.
3	How much time it might take for the patent to be published and granted ?	It takes about 18 months for the patent to be published in case of early publication with fees, it might take about 1-month until then the Application is confidential. It might take about 12 to 30 months for the patent to be granted.
4	Is it compulsory for to do a prototype ?	As per patent act, it's important to provide best method of working and evidence of working. It may or may not be prototype. However, in case if it is asked by patent office it may be a necessity.

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Quotation

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Sl. No	Particulars	Cost (Govt Fee + Prof Fee + Misc.)
1.	Patent searching with oral opinion and direct filing of Complete specification draft, and Request for Early Publication and Request for Examination	8,100+25,000+550 = 33,650/-
2.	Response to Examination	0+20,000+0 = 20,000/-
3.	Attending hearing and filing written submission	0+15,000+0= 15,000/-
In case of Provisional Specification + Complete Specification, there will an extra Prof fee of ₹ 7,000/- charged for Provisional Specification drafting. The payment shall be made in stages, if there is no hearing then it shall not be charged. If there is any other cost involved, quotation shall be shared prior.		

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